
Journal1961 PLD 384

CourtHIGH COURT OF WEST PAKISTAN

Date1961-02-27

Appeal No.WRIT PETITION NO. 178 OF 1960

JudgeWAHIDUDDIN AHMAD, QADEERUDDIN AHMAD AND KHAMISANI

PartiesMESSRS PA HLOMAL MOTIRAMPETITIONERS VERSUS THE CHIEF LAND COMMISSIONER AND 3 OTHERS—RESPONDENTS

LawyersA. S. PIRZADA, CH. NAZEER AHMED, Z. H. LARI, SHARIFUDDIN, NOORUL ARFIN, MUHAMMADALI SYED AND A. H. PIRZADA FOR PETITIONERS. KHALID ISHAQ, A. A. G., ABDUL HAQ AND WAHEED FARUQUI FOR RESPONDENTS.

Statutes

WRIT CIVIL PROCEDURE CODE (V OF 1908) - O. XXX, R. 1. WEST PAKISTAN LAND REFORMS REGULATION, 1959 (C. M. L. AS REGULATION NO. 64) - PARAGRAPH 27 WEST PAKISTAN LAND REFORMS REGULATION, 1959 (C. M. L. AS REGULATION NO. 64) - PARAS. 4 (2) (5), 8, 15 LAWS (CONTINUANCE IN FORCE) ORDER (I OF 1958) - ARTICLE 2 (5) LAWS (CONTINUANCE IN FORCE) ORDER (I OF 1958) JURISDICTION WRIT WEST PAKISTAN LAND REFORMS REGULATION, 1959, (C. M. L. A'S REGULATION NO. 64) - PARAGRAPH 27, READ WITH ARTICLE 2 (5), LAWS {CONTINUANCE IN FORCE) ORDER (I OF 1958) CIVIL PROCEDURE CODE (V OF 1908) - O. XXX, R. 1 HINDU LAW

Judgment

Judgment

Wahiduddin Ahmed, J.—This writ petition is directed against the order of the Chief Land Commissioner, West Pakistan, dated 31st May 1960, which disposed of Revision No. 483 of 1959-60 of Vishin Das and 28 connected revision petitions of the coparceners of M/s.

Pahloomal-Motiram a joint Hindu family. The writ petition has arisen in the following circumstances :

M/s. Pahloomal-Motiram, a joint Hindu family, owns about 18,000 acres of agricultural land situated in the Tharparkar Division of the former Province of Sind. In the Revenue Records this landed property stands mostly in the names of Rai Sahab Jhamandas and Seth Rupchand Chellaram, but admittedly it belongs to the said joint Hindu family. In pursuance of para. 15 of Martial Law Regulation No. 64, known as the West Pakistan Land Reforms Regulation, promulgated by the Chief Martial Law Administrator, the coparceners constituting the above said joint Hindu undivided family filed their separate forms under

L. C. I and L. C. II before the Deputy Land Commissioner at Mirpurkhas, and claimed their notional shares in the agricultural lands belonging to the said joint Hindu family. The Deputy Land Commissioner, Mirpurkhas, by an order dated 2nd July 1959, rejected all the claims on the short ground that they are not "existing owners" as their names do not appear in the Revenue Records. Appeals against this order before the Land Commissioner, Hyderabad, were also summarily rejected by an order dated 24th June 1959. Consequently the coparceners filed 12 revision petitions and the Chief Land Commissioner by a consolidated order dated 29th July 1959, in Revision No. 32 of 1958-59 dismissed all the revision petitions except Revision No. 40 of 1958-59 of Vishin Das. Vishin Das's case was remanded for reconsideration to the Deputy Land Commissioner, Tharparkar as his name appeared in the mutation record. On 11-11-1959 his case was again disallowed by Mr.

Muhammad Iqbal, Deputy Land Commissioner, Tharparkar on the ground that the joint Hindu family land having not been partitioned, Vishin Das as a coparcener was not entitled to any notional share and could not be allowed to retain any land which he was not entitled to own.

It, however, appears that on the 5th of September 1959, the Land Commissioner, West Pakistan, issued a Notification No. ASR-2933- 59/4030-LC under paragraph 4 (5) of Martial Law Regulation No. 64 and directed that the term "Existing, Owner" used in Martial Law Regulation No. 64 shall be deemed "to mean a person entered as an owner in the revenue records on or before the 7th February, 1959 and a person who had become entitled to any land on account of inheritance before the said date although not entered as such in revenue records".

This led the coparceners of the aforesaid joint Hindu family to file further claims before the Deputy Land Commissioner. They claimed benefit under the aforesaid notification, but the Deputy Land Commissioner summarily dismissed these petitions by an order dated 20th November 1959, on the basis of instructions received from the Land Commissioner, Hyderabad, under a letter dated 20th November 1959. The same process was repeated ; appeals were filed before the Land Commissioner Hyderabad, which were summarily dismissed by an order dated 1st December

1959. The matter was again taken before the Chief Land Commissioner on the revision side, but on this occasion instead of 12 revision petitions 28 revision petitions were filed. The learned Chief Land Commissioner by an order dated 16th December 1959, found that all the petitioners were within the third degree of the ancestors alleged to have held the joint coparcenary property. Accordingly, as the question involved was one of policy, the matter was referred to the Land Commission for further instructions with the following remarks :—

" In the present case it is alleged that R. S. Jhamau Das, Parumal, Moti Ram were managers under section 236 which clearly showed that property belonging to a joint family was ordinarily managed by the father or other senior member for the time being of the family, and that the manager of a joint Hindu family was called Karta. Accordingly if it is taken for granted, on the strength of the arguments put forth by the learned counsel for the petitioners, that it is a joint Hindu family, the point for determination would be whether the head of the family or any senior member entered as owner without explicitly shown as Karta in the revenue records could be taken to be a manager in the light of other corroborative evidence as in this case. This is a question of policy which should be referred to the Land Commission, as it has already taken its decision in favour of those coparcenary families only where the person holding lands of a joint Hindu family is shown as Karta (Manager) in the Revenue Records. I shall take up this case after the West Pakistan Land Commission has taken a decision in the matter. The petitioners will be informed about the next date of hearing subsequently."

It will be useful to reproduce the decision of the Land Commission of West Pakistan dated 15th of December 1959, referred to above. It is to the following effect :

"(7) Grievances of Hindus regarding the land reforms in West Pakistan (Item No. 21 of the agenda).

The representations of Hindus made before the Chairman through Mr. Brohi, that they should be treated as members of Joint Hindu family and every member of the family should be considered as owner irrespective of the fact whether his name is included in the revenue records or not, was examined by the Commission. The decisions given by the Chief Land Commissioner in appeals and revisions were also seen. The Commission agreed with the following findings of the Chief Land Commissioner :—

A Hindu can be considered as an 'existing owner' only if his name is entered as an 'Owner' in the revenue records;

O'O Only in such cases where a person is entered in the revenue records as a manager or Karta of a Hindu family, the members of the coparcenary can be treated as existing owner." But the Land Commission in its meeting dated 26-5-1960 confirmed its previous decision and declined to issue any further directions. Accordingly the Chief Land Commissioner, dismissed all the revisions by an order dated 31-5-1960 on the following observations

"5. The present petitioners are all within the third degree of the ancestors who are alleged to hold the joint coparcenary family property.

Section 213 about the Hindu coparcenary is quite clear and on all fours with their case. It says that Hindu coparcenary is a much narrower body than the joint family. It includes only those persons who acquire by birth an interest in the joint or coparcenary property. The holder of the joint property for the time being, in other words, should be within three generations next to the holder in unbroken male descent. With regard to their interest in the property section 216

indicates that the essence of a coparcenary under the Mitakshara Law is unity of ownership. The most appropriate term to describe the interest of a coparcener in coparcenary property is "undivided coparcenary interest", until a partition takes place. t

(g)

(7) The West Pakistan Land Commission again confirmed its previous decision on the point and have desired that the case be decided in the light of the policy decision according to which even the joint family will be treated as a person.

(8) In view of the clear policy laid down by the Land Commission only those petitioners can be considered as existing owners whose names appeared in the revenue records on 7-2-59 as owners or on whose behalf some one was holding the land and was recorded as a Karta. In this case none of the other members of the family has been shown as owner or in possession through a Karta in the latest record. They cannot, therefore, be considered to be existing owners even on the basis of the latest interpretation of an existing owner by the Land Commission.

According to the existing entries in the Revenue Records only the name of Lai Chand and Rewa Chand appear in the records as an existing owner of the land. I, therefore, hold that the decision taken by the Land Commissioner, Hyderabad, is correct and in accordance with the policy laid down by the Land Commission. All the revision petitions, therefore, are hereby rejected."

Thus the coparceners' claim was rejected on the ground that persons holding the lands in the Revenue Records were not shown as Karta of the Joint Hindu Family.

In this writ petition the main grievance is that since all the coparceners of the joint Hindu family in question are "existing owners" of the landed property in dispute in their individual capacity, the respondents should have recognised their right under paras. 8 and 9 of Martial Law Regulation No. 64 and allowed each one of them to retain 500 acres of land or its equivalent units. The impugned order is principally attacked on two grounds : Firstly, that the 28 coparceners being co-sharers in the joint family property must be taken to be holders of less than 500 acres of land each, therefore, the officers of the West Pakistan Land Commission have no jurisdiction to determine their rights under Martial Law Regulation No. 64 ; Secondly, that the Chief Land Commissioner's decision is neither in accordance with notification dated 5-9-1959 nor in accordance with the Land Commission decision dated 15-12-1959. In the petition itself the impugned order is attacked *inter alia* on the grounds that the Chief Land Commissioner in exercise of his revisional powers in the first instance was not competent to refer the question in dispute to the Land Commission and having referred the matter to it become *functus officio* and had no jurisdiction to decide the question before him; that the Chief Land Commissioner failed to decide the dispute before him independently and based his decision upon a reported decision of the Land Commission given on extraneous matters without hearing the petitioners, which itself was *ultra vires* and without jurisdiction inasmuch as it was in conflict with notification dated 5-9-1959 and had no legal value having not been gazetted under para 4 (5) of Martial Law Regulation ; and lastly, that the order was bad as there was error apparent on the face of the record capable of correction by this Court in its extraordinary writ jurisdiction.

The petition is opposed by respondents 1 and 2 mainly on the ground that the jurisdiction of this Court to hear this matter is barred by paragraph 27 of Martial Law Regulation No. 64 and since the authorities functioning under Martial Law Regulation No. 64 are exercising their powers and jurisdiction under the authority of the Chief Martial Law Administrator, the High Court is not entitled to issue any writ against them in view of Art. 2 (5) of the Laws (Continuance in Force) Order,

1958. The case of the respondents is that the matter in dispute falls within the competence of the Land Commission and its officers and this Court has no jurisdiction to determine such questions.

Respondents Nos. 1 and 2 on these grounds moved this Court to discharge the injunction dated 10-6-1960 issued by Inamullah, J., but this application was ordered to be heard along with the main petition. Since the questions raised involve important questions of law, it has now been placed before this Full Bench for final disposal.

The contesting respondents in the pleadings have not raised any objection about the *locus standi* of the petitioners to attack the impugned order.

But during the course of the hearing it became obvious that neither the petitioners were parties to the revision applications disposed of by the Chief Land Commissioner, the subject-matter of attack, nor have they any *locus standi* to challenge the validity of the impugned order.

Accordingly the petitioners' counsel was called upon to satisfy the Court on this point. In reply he contended that since the impugned order affects the coparceners of the aforesaid joint Hindu family the Karta or the manager of the family is interested in the decision of the matter and is entitled to protect the interests of its individual members. After hearing the learned counsel for the parties it appears to me that the joint Hindu family being not a party to the revision applications and the impugned order having nothing to do with the Karta, it cannot be challenged at his instance. Obviously the aggrieved parties are those persons whose individual claims were rejected by the Chief Land Commissioner and they alone being affected are entitled to attack it. It is however urged that all the coparceners are members of the joint Hindu family and as under Order XXX, rule 1, C. P. C. a joint Hindu family firm is entitled to sue in its own name, the present application is also maintainable.

In my opinion this argument is fallacious because the joint Hindu family in this case has no cause of action. It is perfectly clear that the individual members, who took their claim before the officers of the Land Commission in pursuance of paragraph 15 of Martial Law Regulation No. 64 are alone hit by the Order and can be treated as aggrieved party. The joint Hindu family as an individual person neither could claim any exemption under the Martial Law Regulation on behalf of its members nor in law could such claim be made by them on behalf of individual members of the family. The claim preferred by the coparceners is against the very notion of joint Hindu family and simply because the Karta or the manager supports their claim, it cannot be said that he is affected or aggrieved by the Order. Mr. Khalid Ishaque, the learned Additional Advocate General, also adopted this objection at the time of arguments and invited our attention to certain decisions in *Indian Sugar Mills Association v. Secretary to Government The Bangalore District Hotel Owners' Association v. The District Magistrate, Bangalore* and another (2) and *Charanjit Lai Chowdhury v.*

The Union of India and others He also invited our attention to the views expressed in Articles 194 and 196 of Halsbury's Laws of England, Volume 11, Third Edition. The gist of the decisions and the view of the learned commentator in Halsbury's is that no one except those whose rights are directly affected by a law can raise the questions of its constitutionality or claim an order of mandamus or other legal right or enforce any legal right in writ jurisdiction. Mr. Sharifuddin the learned counsel for one of the coparceners, however, distinguished these cases on the ground that they are either of Associations or of incorporated companies and contended that their case stands on a different footing. He faintly argued that the joint Hindu family represents all its coparceners and on analogy of Order XXX, rule 1, C. P. C. the application can be maintained in its name and such an application should be treated on behalf of each and every member of the joint Hindu family. He further contended that as all the members of the joint Hindu family are affected by the impugned order, the joint Hindu family is an aggrieved party and could file the present application. The position taken up by the learned counsel has not at all impressed me. It appears to me that Order XXX, rule 1, C. P. C. cannot be applied to this case because in the first place the dispute is not that of a joint Hindu trading partnership in respect of business and in the second place the claim of the coparceners is against the very notion of joint Hindu family and such that could not be raised or claimed by it under paras. 8 and 9 of Martial Law Regulation No. 64. I have not the slightest doubt that the petitioners have no *locus standi* to invoke the writ jurisdiction of this Court in this matter. The principles on which parties are treated as aggrieved was considered by their Lordships of the Supreme Court in *The Tariq Transport Co., Lahore v. The Sargodha Bhera Bus Service* The question before their Lordships in case was whether the Provincial Transport Authority had any *locus standi* to be heard in the

petition to which it was not a party and against whom no relief was claimed in the writ petition itself. Munir, C. J. in that connection at page 452 of the report observed as under : —

"In a petition for writ the first question that the Court has to (1) A I R 1951 All. 1 (2) A I R 1951 Mys. 14, 16

(3) A I R 1951 S C 41, 42 (4) P L D 1958 S C (Pak.) 437

consider is whether t(ie petitioner has the locus standi to invoke the extraordinary jurisdiction of the Court, and I consider it to be a basic principle that a person seeking judicial review of administrative or wan-judicial action must show that he has a direct personal interest in the act which he challenges before his prayer for review is entertained. 'A petitioner', says Mr. Justice Frankfurt in his concurrent opinion in *Gian Anti- Fascist Refugee Committee v. McGrath* (341, U. S. 123, 151) 'does not have standing to sue unless he is interested in and affected adversely by the decision of which he seeks review. His interest must be of a personal and not of an official nature'. An application for an order of certiorari can only be made by an aggrieved party and not merely by one of the public, *R. v. Nicholson* (1899) 2 Q. B. 455 and in the case of an application for an order of mandamus it is an established rule that the applicant must show that there resides in himself a legal right to the performance of a legal duty by the party against whom the mandamus is sought, *R. v. Lewisham Union* (1897) 1 Q. B. 498 at p. 500. It cannot be contended that the Provincial Transport Authority had any such interest in the matter to entitle it substantially to assume the role of a petitioner. Certiorari cannot issue at the instance of one not named as a party to the proceeding in which the judgment or order sought to be reviewed was entered. Where one not a party seeks to sue certiorari, he must show that the decision sought to be reviewed is directed against him or his property in the sense that the enforcement of the decision would involve special, immediate and in its effect a direct injury to his interest."

Thus it will be noticed that only an aggrieved party is entitled to invoke the writ jurisdiction of the High Court and as the 4 petitioners were neither a party nor directly affected by the impugned order, the petition on behalf of the joint Hindu family is wholly misconceived and liable to be dismissed on this ground alone. The petitioners were conscious of this defect and it was for this reason that Vishin Das one of the coparceners in paragraph 2 of his affidavit dated 9th June 1960 stated as under :

"I say that the facts as stated in the accompanying writ petition are to the best of my knowledge. I say that all the several coparceners cited as applicants in the order of the E learned Chief Land Commissioner dated 31st May 1960 are members of ihe Hindu Undiigded Family of Messrs Pahlomal Motiram, and the said members have all authorised their Karta namely, Rai Saheb Jhamandas, to file the present writ petition."

In my opinion this authority is of no value. Ihe coparceners might be entitled to bring an application in a representative way, „ but as it was not brought in accordance with Order I, rule 8, C. P. C., it is bound to fail.

1 would have, therefore, dismissed this application on this ground alone but Mr. Sharifuddin, representing one of the coparceners, informed us that all the coparceners by abundant caution are filing separate applications to attack the impugned order. Since the matter on merits has been argued at length and the questions raised are likely to give rise to number of other petitions, I would like to express my opinion on the merits of the case.

The most important question for consideration in this case is whether the impugned order can be judicially reviewed by the High Court on its writ jurisdiction side. As already stated the impugned order is attacked principally on two grounds : firstly, that the Land Commission Authorities bad no jurisdiction to decide the rights of a land owner whose agr'cultural land is not in excess of 500 acres of land ; and secondly, that the impugned order is not in strict conformity with the provisions and rules of Martial Law Regulation No. 64 and conflicts with the decisions of the Land Commission. It therefore becomes necessary to examine the dispute raised before the Land Commission authorities and their decision on it. But before doing so, it is necessary to find out the scheme of Martial Law Regulation No. 64 and the land reforms introduced under it. This piece of legislation, which came into force on the 7th of February 1959, was promulgated by the Chief Martial Law Administrator and took far-reaching decisions in respect of the holdings of agricultural land owners in the area what is known as West Pakistan.

The Chief Martial Law Administrator for its implementation constituted a commission headed by the Governor of West Pakistan and live members Appointed by him known as the West Pakistan Land Commission. The Commission is empowered to take all necessary action for the implementation of the Regulation. It is also authorised to set up organizations and appoint officers, authorities and persons, and confers powers on and assigns duties to them. Under paragraph 4 (5) it is provided that where any matter is not provided for in the Regulation, or any difficulty arises in giving effect to its purposes, the Commission may, by order notified in the Official Gazette, make such provision in respect thereof as it thinks fit, and such order shall be deemed to form part of the Regulation and have effect accordingly. Paragraph 4 (6) provides that where any dispute arises in carrying into effect the provisions of the Regulation, such dispute shall be referred to. the Commission whose decision thereon shall be final. In paragraph 5 the Commission is authorised, with the previous sanction of Government, to make rules for carrying out the purposes of the Regulation, including rules on matters relating to or connected with the presentation, hearing and determination of appeals from, and applications for the revision and review of, orders made under it. Paragraph 8 lays down the limits on individual holdings viz., that no person shall, at any time, own or in any capacity possess land in excess of five hundred acres of irrigated land or one thousand acres of unirrigated land.

Under paragraph 9 certain exemptions are igenous to educational institutions etc. Under it an existing owner is also allowed to retain out of his present holding such additional area, if any, which would bring the total area retained by him to the equivalent of 3,600!) produce index units.

Paragraph 15 provides that the Commission may by order published in the Official Gazette direct persons who own or possess land in excess of 500 acres of irrigated land to submit to such authority, in such manner and form, and by such date, as may be specified in the order, declarations in respect of areas owned or possessed by such persons areas for which they claim exemption under the Regulation, and such other information as the Commission may require. Paragraph 16 provides that land in excess of the area permissible for retention under Part III shall vest in and be resumed by Government free from any encumbrance or charge. Paragraph 17 provides the scale of compensation for the resumed land. Thus under Martial Law Regulation No. 64 no person is entitled to hold more than 500 acres of irrigated land or more than 1,000 acres of unirrigated land in West Pakistan and any land in excess of this limit will be resumed by the Government on payment of compensation and disposed of in accordance with the scheme detailed in it.

The important provisions which are material for the decision of the present case are contained in paras. 3 and 27 of the said Regulation. They are reproduced below :

"(3) Regulation to override other laws, etc.—The provisions of this Regulation, and any rule or order made thereunder, shall have effect notwithstanding anything to the contrary in any other law, or in any order or decree of Court or other authority, or in any rule of custom or usage, or in any contract, instrument, deed or other document.

27. Bar of jurisdiction.—(I) No provision of this Regulation or of any rules or orders made thereunder shall be called in question in any Court, including the High Court and the Supreme Court, or before any authority other than an authority appointed under this Regulation, and no such Court

or authority shall have jurisdiction in respect of any matter which the Commission or an officer acting under the authority of the Commission is empowered to determine.

(2) No such Court or authority as aforesaid shall be competent to grant any injunction or other order in relation to any proceeding before the Commission or before any officer exercising any power or discharging any function under this Regulation or the rules or orders made thereunder or in relation to anything done or intended to be done by or at the instance of the Commission or such officer."

It is therefore perfectly clear that under para. 3 the provisions of the said Regulation, its rules and orders and decisions taken are given precedence on all other laws, and rules of custom or usage etc. In addition to this, under para. 27 its provisions and rules and any orders passed under it are given complete immunity from the jurisdiction of the Civil Courts including the High Court and Supreme Court. In effect, this provision explicitly ousts the jurisdiction of all the Civil Courts,

It appears that the land in dispute in the Revenue Records stood in the names of Rai Saheb Jhamandas and Roopchand. On these entries obviously the whole of the land was affected by para. 8 of the said Regulation. In order to avoid its adverse effect in the first instance only twelve coparceners of the said joint Hindu family moved the Deputy Land Commissioner, Mirpurkhas, and each one of them in their individual capacity claimed 500 acres of land out of the land in dispute. This claim was ultimately rejected by the Chief Land Commissioner by an order dated 24-6-1959. But the question was again agitated on the basis of a fresh notification dated 5th September 1959, which reads as under :

"No. ASR-2933-59/4030-LC.—In exercise of the powers 1 conferred on the West Pakistan Land Commission under paragraph 4 (5) of the Martial Law Regulation No. 64 the Commission is pleased to direct that term "Existing Owner" used in the Martial Law Regulation No. 64 shall be deemed to mean a person entered as an owner in the revenue records on or before the 7th February, 1959 and a person who had become entitled to any land on account of inheritance before the said date although not entered as such in revenue records."

On this occasion 28 coparceners of the joint family claimed individually their share in the property in dispute but this attempt also failed. As already stated the Chief Land Commissioner dismissed all the revisions arising out of it, namely, Revisions No. 499 to 521 and Revisions No.

483, 558, 559, 560 and 561 by an order dated 31-5-1960 on the short ground that the property in dispute being not recorded in the name of R. S. Jhamandas and Roopchand as Karta or Manager, the coparceners cannot claim its possession through them and cannot be treated as existing owners in view of the latest interpretation of this term by the Land Commission.

The facts that led to the present petition clearly show that the matter that came up before the Chief Land Commissioner and other authorities was in respect of agricultural land in West Pakistan and was directly affected by Martial Law Regulation No. 64. It is, therefore, obvious that the Deputy Land Commissioner, the Land Commissioner and the Chief Land Commissioner, and for the matter of that the Land Commission were fully competent to entertain the dispute raised before them and to decide it in accordance with the provisions of the above-mentioned Martial Law Regulation. There is not the slightest doubt that the present case is not one of those cases where an order suffers from inherent lack of jurisdiction. Mr. Pirzada Abdul Sattar the learned counsel for the petitioners, seriously contended that none of the Land Commission authorities are competent to pass any order in respect of those land owners whose holdings do not exceed 100 acres of agricultural land. This is absolutely correct. But the question is whether the Land Commission authorities in this case have passed orders in respect of holdings of such an existing owner. The learned counsel's argument that under Hindu Law a coparcener is entitled to any defined share in the joint Hindu family property is without any substance. Admittedly the coparceners in this case are governed by Mitakshara School of Hindu Law. Under this school a coparcener cannot be treated as an owner of any defined share as long as the joint family property remains joint. In Mulla's well-known treatise, Principles of Hindu Law (10th Edition) in paragraph 279 at page 339, the status of a coparcener under the Mitakshara Law is described as under :

"The essence of a coparcenary under the Mitakshara Law is unity OF OWNERSHIP. The ownership of the coparcenary property is in the whole body of coparceners. While the family continues joint, no coparcener can say that he is the owner of a definite share, one-third or one-fourth. His interest is a fluctuating interest, capable of being enlarged by deaths, and liable to be diminished by births in the family. It is only on a partition, that he becomes entitled to a defined share. Once the shares of the coparceners are defined, a partition is deemed to have taken place, and the coparcenary is dissolved from that moment."

The position, however, under the Dayabhaga Law is different and under that system every coparcener takes a defined share in the property and he is the owner of that share. Under the Mitakshara Law before any coparcener claims any defined share the unity of ownership by partition must be destroyed. No such case has been set up and therefore the ownership of the coparcenary property is in the whole body of coparceners namely the joint family and the property in dispute vested entirely in the joint Hindu family and not in its individual members. The coparceners were fully conscious of this fact and it was for this reason that they claimed separate share and submitted separate forms under paragraph 15 of Martial Law Regulation No. 64 to the Deputy Land Commissioner. The contention of Mr. Pirzada that the Land Commission authorities had no jurisdiction over the estates of the coparceners of the above-mentioned joint Hindu family has no legs to stand on because if the coparceners had not claimed the property in their own right, the joint Hindu family under no circumstances would have been able to retain more than 500 acres of irrigated land or 1000 acres of unirrigated land. In my opinion the coparceners having invoked the jurisdiction of the Land Commission Authorities, cannot be allowed to turn round and say that they had no jurisdiction in respect of their individual claims. Admittedly there was no partition between the joint Hindu family before the 7th of February 1959 and therefore the coparceners were not entitled and not in possession of any defined share of the property and were bound to go before the Land Commission to claim exemption from the provisions of para. 8 of Martial Law Regulation No. 64. Incidentally it may be mentioned that the petitioners in the prayer clause have asked for a writ of mandamus with a direction that the Chief Land Commissioner should use his own judicial discretion in the disposal of their revision applications. Its necessary implication is that he has jurisdiction to decide the matter disposed of by him. In these circumstances I am clearly of the view that the Land Commission authorities had ample jurisdiction to entertain and decide the claim of the coparceners and the impugned order does not suffer from inherent lack of jurisdiction.

At this stage I would also like to dispose of another subsidiary point raised on behalf of the petitioners. The petitioners have also attacked the impugned order on the ground that it is based on the decision of the Land Commission taken in its 18th meeting held on the 15th of December 1959 reproduced in the earlier part of the judgment. Mr. Pirzada's contention is that this decision being not in the nature of a provision contemplated in para. 2 (5) has no legal value and the learned Chief Land Commissioner should not have based his decision on it. In substance his argument is that as this decision was not notified in the Official Gazette under para. 2 it did not have the force of law and the impugned order being based on it is without jurisdiction. It is true that this decision was not notified in the Official Gazette but it is of no consequence because it does not relate to any matter which is not provided either in the Martial Law Regulation or its rules. In fact this decision was taken on the representation of West Pakistan Hindus and met their difficulties. It decided that in those cases where the landed property appears in the revenue records, in the name of any person as Karta of joint Hindu family, the members of coparcenary can take advantage of it. I have no doubt that under para. 4 of the Regulation the final responsibility to implement its scheme is on the Land Commission, and it is fully competent to resolve any dispute or difficulty that arises in its implementation under para. 4 (6) of the Regulation. The decision in question clearly falls under this paragraph and does not suffer from any illegality. This decision was binding on the Chief Land Commissioner under para. 4 (3) and no objection can be raised simply on the ground that the impugned

order is based on it. The learned Additional Advocate General's contention that the adjudication of the dispute under Martial Law Regulation No. 64 is more of an administrative nature than in the nature of civil-judicial proceedings is fully borne out by its provision. Both paras. 4 (2) and (3) clearly lay down that all the powers to implement the Regulation vest in the Land Commission and the Chief Land Commissioner was bound to follow its direction given from time to time. In view of these provisions the Chief Land Commissioner was fully justified in referring the new points raised before him for guidance to the Land Commission. In my opinion in following this procedure neither the learned officer became functus officio nor committed any illegality. The learned counsel towards the close of the case realised the weakness of his argument because once it is held that the Land Commission's decision is not of a valid and binding character, it is obvious that the only ground in which the petitioners could take refuge would disappear and there would be nothing left for consideration. Mr.

Pirzada, therefore, did not press this point. He, however, contended that the Chief Land Commissioner's order suffers from illegality because it is not in conformity with the aforesaid decision of the Land Commission.

It now remains to be seen whether the Chief Land Commissioner failed to observe the decision of the Land Commission taken at their meeting dated 15th December 1959. The petitioners have produced before us certified copies of certain Revenue Records and their translation shows that on the death of Seth Lalchand Khanchand some of the landed properties standing in his name were mutated on the 20th of August 1937 in the name of Jhamandas Ramchand. They further show that on the death of Rewachand Chelaram some of the landed properties standing of the Land Commission decision is literally followed. In these circumstances at best petitioners have only made out a case that the learned Chief Land Commissioner has not followed the spirit of the decision of the Land Commission.

The next argument of the learned counsel that the coparceners of the joint Hindu family are entitled to claim share in the property in dispute on the basis of the Land Commission notification dated 5th September 1959 is also without force. This notification has already been reproduced earlier. It is urged that the case of the coparceners is in the nature of the case of "a person who has become entitled to any land on account of inheritance before the said date although not entered as such in revenue records". I have already indicated that under the Mitakshara system of Hindu law, coparceners cannot have any defunct share in the joint Hindu family property unless until there is a partition in the family. There are only two modes of devolution of property recognised in Mitakshara School namely, survivorship and succession. According to Mulla the rule of survivorship applies to joint family property and the rules of succession apply only to property held in absolute severalty by the last owner. Thus the property in dispute being of joint Hindu family, it cannot be said that on the death of any coparcener the other coparceners become entitled to any land on account of inheritance because his interest passed to the surviving coparcener and not to his heirs as in the Dayabagah Law. I am therefore clearly of the view that the coparceners in this case cannot derive any benefit under the aforesaid notification.

In my opinion the fate of the coparceners' case depends on the answer of the question whether this Court in its extraordinary writ jurisdiction is competent to review the order of a Tribunal of competent jurisdiction on the ground of an error apparent on the face of the record in so far as the impugned order appears to be against the spirit of the Land Commission's decision dated 15th December 1959. Mr. Khalid Ishaq, the learned Additional Advocate General, has strongly argued that the jurisdiction of this Court is barred not only under para. 27 of Martial Law Regulation No. 64 but also under Art. 2 (5) of the Laws (Continuance in Force) Order, 1958. On the other hand, the learned counsel for the petitioners has taken up the position that the writ jurisdiction conferred on the High Courts under Art. 2 (4) of the Laws (Continuance in Force) Order, 1958, has not and cannot be taken away under para. 27 of Martial Law Regulation No. 64. It is argued that this paragraph refers only to the ordinary jurisdiction of the Supreme Court and High Court. The most surprising part of this case is that even Chaundhri Nazir Ahmed, the Attorney-General of Pakistan, who is appearing this matter in his private capacity for the petitioners has associated himself with this argument.

The contention of Mr. Z. H. Lari, the learned counsel for one of the coparceners, that although under Art. 2. (2) all the ordinary Courts in existence immediately before the proclamation are allowed to continue subject to any order of the President or Regulation made by the Chief Administrator of Martial Law under Art. 2 but under

Art. 2 (4) the High Court and Supreme Court (have been invested separately with the power to issue high prerogative writs, which is not subject to the provisions of Art. 2 (1) and cannot be taken away except by amendment in the aforesaid order.

At first sight this argument is most attractive but on examination its weakness becomes apparent. It cannot be denied that a peaceful revolution took place in this country in 1958, which resulted in the abrogation of the Constitution of 1956, and the Government in power is functioning under the sanction of Martial Law rule. The head of this Revolutionary Government is the President, who also happens to be the Chief Martial Law Administrator. It is also a known fact that on the abrogation of the Constitution of 1956, the civil administration in the country had completely collapsed and was restored by President's Order (Post-Proclamation) No. 1 of 1958. This ingenious piece of constitutional legislation, short as it is, deals practically with every organ of the Government but it cannot be overlooked that the entire legislative and executive authority now vests only in one person namely the President and Chief Martial Law Administrator. In the face of this constitutional position I have not the slightest hesitation in expressing that the power to issue prerogative writs conferred on the High Courts and the Supreme Court under it is also subject to orders of the President and Chief Martial Law Administrator, who possesses unfettered plenary power of legislation. In my opinion, there no longer exists any distinction between "organic" or "constitutional" and "ordinary" Law that existed in pre-revolution times. At present two kinds of legislation are in vogue in this country. One is an ordinary legislation which is issued in the name and authority of the President and the other are Martial Law Regulations which are issued under the authority of the President and the other are Martial Law Regulations which are issued under the authority of the Chief Martial Law Administrator. In law both of them have equal force and the Courts must construe them as far as possible in such a manner that they may not conflict with each other. It appears to me that the framers of this shortest piece of constitutional legislation had this in mind.

It is for that reason that not only in Art. 2 (5) it is provided that no writ shall be issued against the Chief Administrator of Martial Law or the Deputy Chief Administrator of Martial Law and any person exercising powers or jurisdiction under either authority; but under Art. 3 it is further provided, that no Court can question any Martial Law Regulation. The undisputed position is that the Land Commission is the creation of Martial Law Regulation No. 64 and undoubtedly all the functionaries of this institution have derived their power under the said Regulation through the Chief Martial Law Administrator. It is thus obvious that the Land Commission functionaries are exercising their powers and jurisdiction under his authority and Art. 2 (5) of the Laws (Continuance in Force) Order, 1958, is fully applicable and no writ can be issued to them. On this view of the matter the impugned order is immune from the writ jurisdiction of this Court.

I will now proceed to consider the effect of para. 27 of Martial

Law Regulation No. 64, which has been reproduced in the earlier part of the judgment. It expressly takes away the jurisdiction of Supreme Court and the High Court to question not only the provision of the Regulation or of any rule or order made thereunder, but also in respect of any matter which the Commission or any officer acting under the authority of the Commission is empowered to determine. Not only this, even the power of such Courts to grant injunctions in relation to anything done or intended to be done by or at the instance of the Commission or its officers has been taken away. The reason is obvious that the Chief Martial Law Administrator with a view to implement the land reforms speedily wanted to avoid all outside interference and provided safeguards against it. This is absolutely clear from paragraph 3 of the regulation which impliedly superseded all existing

personal laws affecting the right of a citizen to hold property. On the plain language of para. 27 there is no doubt in my mind that the jurisdiction of the Supreme Court and High Court has been completely ousted in respect of matters covered by this Regulation.

But Mr. Lari argued that the language of this para. is exactly the same as in the Rehabilitation Laws. I am afraid it is not so. Under the Rehabilitation Laws the power of the High Court and Supreme Court is not specifically taken away and no analogy can be drawn between those provisions and the paragraph under consideration. In my opinion, once it is found that under a Martial Law Regulation the power of the High Court is ousted, it is not open to any party to say that it only affects its ordinary jurisdiction. The moment such objection is raised it will immediately involve the point of questioning the Martial Law Regulation, which cannot be done under Art. 3. Accordingly this question cannot be agitated before us.

It was next urged that if the competent tribunal fails to decide the matter in conformity with the law, the jurisdiction of the Civil Courts to interfere in such cases remains intact and such orders can be challenged before them. Reliance was placed on the cases *Secretary of State v. Mask Co.*, *V.P. K. B. P. v. Vimlabai Deshpande* (2) and *Emperor v. Sibnath Panerji and others* (3). The burden of these decisions is that even if jurisdiction of the Civil Court is excluded, it is entitled to interfere where the statutory tribunal has not decided the matter strictly in conformity with the provisions of Statute under which it is exercising its authority. This view is also supported by a decision of the Supreme Court of Pakistan in *Muhammad Tufail v. Abdul Ghafoor and others*. In that case the question for consideration was whether the High Court has writ jurisdiction in view of the provisions of the Rehabilitation Law which lay down that no Court can challenge the decision of any of the functionaries under the Rehabilitation Law. Their Lordships in that case, on consideration of the above-mentioned decisions came to the conclusion that where an order of the Rehabilitation Authority is not in

(1) A 1 R 1940 P C 105 (2) A 1 R 1946 P C 123

strict conformity with the Ordinance, the Civil Courts were entitled to interfere in such cases and rectify the mistakes. On the other hand Mr.

Khalid Ishaq, the learned Additional Advocate General, invited our attention to two recent decisions of the Supreme Court of Pakistan in *Muhammad Ayub Khuro v. Pakistan* (1) and *Zafar-ul-Ahsan v. The Republic of Pakistan*. As far as the decision in *P. L. D. 1960 S. C.*

(Pak.) 237 is concerned, it is not of much help in this case because in that case their Lordships came to the conclusion that the Special Judge who tried the case of Mr. Khuro lacked inherent jurisdiction and his order was void and could not be considered to have been passed by a Court of competent jurisdiction. The next case *P. L. D. 1960 S. C. (Pak.) 113* needs consideration. In that case one of the C. S. P. officers was screened out under the Public Conduct (Scrutiny) Ordinance (III of 1959). It was contended on his behalf that the order of retirement was not an order under sub-clause (b) because of non-observance of rule 2 or the omission or refusal of the President to hear the appellant in support of his appeal. Their Lordships in that connection observed at page 119 of the report as under

, 5 ' 4 U. i ' il-A Ju Kl

"But here our jurisdiction to call in question the proceedings of a Screening Committee is barred by section 10 of the Public Conduct (Scrutiny) Ordinance, and an order made by the President under sub-clause (6) of clause of Article 6 of the Laws (Continuance in Force) Order cannot be called in question in any Court. So far as section 10 is concerned there can be little doubt that even if Mr. Brohi's contention be correct, namely, that the committee never informed the appellant that it had reasons to believe that he was corrupt or guilty of misconduct, the omission would be no more than a mere irregularity in procedure of which we cannot take cognizance.

As regards the contention that the order of retirement is not an order under sub-clause (b) because of the non-observance of Rule 2 or the omission or refusal of the President to hear the appellant in support of his appeal, the position is precisely the same, viz., that the order must be held to be under sub-clause

(b) of clause (5) of Article 6 of the Laws (Continuance in Force) Order, even if in following the statutory procedure some irregularity was committed. If a statute provides that an order made by an authority acting under it shall not be called in question in any Court, all that is necessary to oust the jurisdiction of the Courts is that the authority should have been constituted as required by the statute, the person proceeded against should be subject to the jurisdiction of the authority, the ground on which action is taken should be within the grounds stated as by the statute, and the order made should be such as could have been made under the statute. These conditions being satisfied, the ouster is complete even though in following the statutory procedure some omission or irregularity might have been committed by the authority." }«.

Their Lordships further observed :

"Of course where the proceedings are taken mala fide and the statute is used merely as a cloak to cover an act which in fact is not taken though it purports to have been taken under the statute, the order will not, in accordance with a long line of decisions in England and in this sub continent, be treated as an order under the statute."

-A In my opinion it is only within these limits that this Court can consider the case of the coparceners. But Mr. Pirzada Abdus Satter distinguished this case on the ground that in that case the jurisdiction of the Supreme Court was taken away by amendment Laws (Continuance in Force) Order, 1958, itself. In my opinion the distinction is of no importance because as already observed by me the Martial Law Regulation stands on the same footing and emanates from the same authority which legislated the Laws (Continuance in Force) Order, 1958. This view is fortified by the fact that in *Pakistan Times'* matter, the jurisdiction of the Supreme Court and High Court was also taken away by Martial Law Regulation No. 7. In my opinion in the present set up the jurisdiction of the High Court and the Supreme Court can easily be taken away by Martial Law Regulation.

, : P® argument of Mr. Pirzada that the writ jurisdiction can only be taken away by express negative words and not by general provisions has also not impressed me. The learned counsel referred us to Halsbury's Laws of England, Vol. 11, Third Edition, paras, 257 and 258, but according to the learned author this rule is limited to cases in which certiorari is available at common law. In this case this Court is not exercising writ jurisdiction on common law or any organic or constitutional law and the principles enunciated therein cannot be applied to this case. A fortiori.

In view of the above discussion I am of the opinion that the writ jurisdiction of this Court has been completely ousted under para. 27 of Martial Law Regulation No. 64 and this Court is not competent to issue any writ against the respondents under Art. 2 (5) of the Laws (Continuance in Force) Order, 1958, who are acting and exercising their powers and jurisdiction under the authority of the Chief Administrator of Martial Law merely on the ground that the impugned order is not based on principles of substantial justice. I am satisfied that the Chief Land Commissioner is an authority constituted under Martial Law Regulation No. 64, that the matter in dispute falls within the jurisdiction of that authority and the impugned order is within the limits of the statute. The petitioners have failed to make out a case that the statute has been used merely as a cloak against the coparceners. No mala fides are alleged against the respondents.

In these circumstances the impugned order is not at all open to review. y

Accordingly I will dismiss the writ petition with costs.

Khamisani, J.—I agree.

Qadeeruddin Ahmed, J.—My learned brother, Wahiduddin Ahmed, J. has written an exhaustive judgment. In view, however, of the legal talent represented in this case and the perseverance with which three learned counsel for the petitioner have tried to impress upon us that injustice has been occasioned, I would like to add a few words without repeating the facts stated and the arguments analysed by my brother. Absolute justice cannot be done, but I shall discuss the main aspects of the case with the object of discovering injustice, if there is any, and rectifying it if I can do so legally.

2. The following contentions constitute the main aspects of these proceedings, which I shall examine :—

That this petition instituted in the name of Messrs Pahlomal-Motiram is on behalf of the joint Hindu family for the benefit of its individual members.

(i7) That, in reality, each member of the family individually owns the joint family property, and that the share of each member is less than 500 acres. \j

(hi) That the entries which exist in the revenue papers entitle the members of the family, according to a notification and a resolution of the Land Commission, to be recognised, as individual owners of the family property.

(iv) That this Court has the jurisdiction to quash the order of the Chief Land Commissioner, as well as to prevent him and other officers by mandamus from giving effect to it.

3. As the first contention discloses, the present petition has been instituted in the name of "Messrs Pahlomal Motiram" on behalf of the family* but aims at establishing the ownership of its individual members. This is a contradiction inherent in it. Moreover, Pahlomal was a forefather of the present co-parceners and is admittedly not alive. His name has no juristic existence, and to my knowledge, neither individual members of joint families nor joint Hindu families themselves are described among Hindus by adding the word "Messrs" to the name of a forefather. Paragraph 1 of the petition informs us that the name of the present 'Karta' of the family is Rai Saheb J. Ramdas, but the title of the petition shows that he is not the petitioner. If he had brought this petition in his own name, he could represent the family as a whole, but this was not the object of this petition; therefore plurality has been introduced by adding the word "Messrs" to the name of a forefather. Presuming that the family has a business, and that the business is known by the name of "Messrs Pahlomal Motiram", this fact does not entitle the family or the members of the family to file this writ petition in the name of their family business. A claim relating to family business itself cannot be instituted in a Civil Court by adopting the method which has been employed in this petition. References were made to Order XXX, C. P. C. to justify it, but as pointed out by the Privy Council in *Lachman Das v. Income-tax Commr.* it is the Karta the family who is capable of representing the family as its responsible member. - An abstract name, like "Messrs Pahlomal Motiram,"

cannot be pressed to this use, nor can it be used as a short expression to represent all co-parceners individually. Without elaborating this point, I may, for the sake of convenience, reproduce the following passage from page 102 of the *Law of Pleadings in British India* by P. C. Moha (1927 Ed.)

"Though a joint family trading business is governed by the same rules as a partnership, yet it cannot strictly speaking be called a partnership and members of the family can hardly be called partners. It is, therefore, submitted that a suit by or against a firm owned by a joint family cannot be brought in the name of the firm under which the business is carried on, but must be brought by or against all the members or the managing member of the family in his capacity as such manager." We enquired from counsel for the petitioner if they wanted to amend the name of the petitioner, or to withdraw it with permission to file another petition in correct names. They asked for time to consider the question, and then informed us that they would press the petition as it is. At the conclusion of arguments, one of them, namely, Mr. Sharifuddin informed us that they had in the meantime filed or decided to file 28 writ petitions separately, each one of which will represent a co-parcener. They represent a rich family and could make experiments. The information conveyed to us perhaps indirectly amounts to conceding the objection to the maintainability of this petition in the name of Messrs Pahlomal Motiram, at the same time making use of this petition to ascertain the views of the Judges which form this Bench. There is little doubt that this petition in the name of Messrs Pahlomal Motiram is neither maintainable on behalf of the family nor its members.

4. It is, however, necessary to consider the case of the co-parceners on merits so that the time spent on hearing learned arguments on this aspect may not have to be written off as wasted. On merits their case is that in reality they are the owners of the family property individually and that, in any event, their individual ownership should have been recognised by the Chief Land Commissioner because of a notification dated the 5th of September, 1959 bearing No. ASR-2933-59/4030 L. C. issued by the Secretary, West Pakistan Land Commission, in exercise of the powers conferred by Paragraph 4 (5) of the Martial Law Regulation No. 64 and a resolution passed by the West Pakistan Land Commission on the 15th of December, 1959. Counsel have argued that the failure or omission of the Chief Land Commissioner to recognise individual ownership of the co-parceners, was in violation of the notification and the resolution, and that as such it was made without jurisdiction. I may note that if there was clear violation of the notification or resolution, it would have been unnecessary for petitioner's counsel to take the stand that the real owners of joint Hindu family property are its co-parceners. I shall consider both contentions separately, taking up the claim to ownership by individual co-parceners first.

5. Mr. Pirzada has argued that the total area of the land that belongs to the joint family is about 18,000 acres, and that the number of the co-parceners is 28; therefore, each of them may be taken to be the owner of less than 500 acres. He has filed a family tree in which the shares of the co-parceners are stated. The principle on which the shares purport to have been calculated is that the family is taken to be divided into three branches, and each branch is supposed to own one-third of the family property per stripes, excluding the unmarried daughters who are supposed to be entitled to maintenance and dowry only. The share of each member of the family has not been calculated and shown in acres.

On this basis the argument of counsel has been that the acreage is so small that individual shares must fall below the area of 500 acres and that, as such the provisions of Martial Law Regulation No. 64 are not attracted. It is unnecessary to ascertain the details of the alleged shares because the fundamental and obvious mistake of this argument is that it presumes that the members of a joint Hindu family own distinct shares in the family property. The family now before us is governed by Mitakshara Law in which no individual member of the family, so long as it remains undivided, can claim any definite share in the joint family property. In the words of N. S. Bindra in *Pleadings and Practice* (1958 Edn.) at page 131

"No individual member of that family, whilst it remains undivided, can predicate of the joint and undivided property; that he that particular member, has a certain definite share. He has an interest in the co-parcenary and on his death this interest lapses to the co-parcenary, it passes by survivorship to the other co-parceners. He, therefore, has no power to devise it by will, nor is there any question of succession to it."

This view of the author is supported by *Sri Ram v. Collector* (I) Lahore (I) and *Appovier Seetaramier v. Ram Suba Aiyar* (2) being the law, the

foundation of the case of the coparceners should be taken to be non-existent. A large wing of the learned arguments of counsel has been built on this non-existing ground.

6. Turning now to the notification and the resolution I may point out that the expression "joint Hindu family" is not defined in Martial Law Regulation No. 64. Moreover, unlike clause (a) of subsection (3) of section 2 of the Pakistan (Administration of Evacuee Property) Act, 1957, it does not recognise any right or interest of a co-parcener in joint Hindu family property which might accrue to him on partition of the property.

The expression "owner" has been defined in the Regulation so as to include in the expression an "occupant" as defined in clause 16 of section 3 of the Bombay Land Revenue Code, 1879. This definition does not help the petitioner, and no attempt has been made to use it.

In the body of the Regulation there occurs the expression "existing owner". As it has not been defined in the Regulation, the Land Commission has made use of sub-paragraph 5 of paragraph 4 of the Regulation and issued the notification dated the 5th of September, 1959 to supplement the provisions. The notification has defined the expression "Existing Owner" to mean

1 a person entered as an owner in the revenue records on or before the 7th of February, 1959, and a person who had become

(1) A I R 1942 Lah. 173 (F B) (2) 11 Moors I A 75

entitled to any land on account of inheritance before the said date although not entered as such in revenue records."

This definition does not apply to the members of a joint Hindu family. It applies to those cases in which the name of a person was entered on or before the 7th of February 1959 as the owner of land but after it, on his death, the names of his heirs who became entitled to it were not brought on revenue record. It cannot apply to the members of Joint Hindu families, because there is no question of such inheritance in them.

This was apparently realised by the Hindu land owners, who made representations to the Commission, as a result of which the Commission decided on the 15th of December, 1959, as follows :—

"Only in such cases where a person is entered in the revenue records as a manager or a Karta of a joint Hindu family the members of the coparcenary can be treated as existing owners."

In the case before us the name of the Karta of the family is not entered in the revenue records in that capacity, but copies of some entries have been produced by counsel for the petitioner during the arguments to show that the names of two members of the family are entered in the column of owners "for" the family. As the family is admittedly a joint Hindu family, Mr. Pirzada has contended that the variance between the form of entry contemplated in the resolution and the entries on which the co-parceners base their claim, is merely of a literal type because the word "for" can have no other meaning than that the two persons whose names are entered as owners were entered as the agents of the family.

In other words, they are the managers or Kartas of the family. This is the only contention that brings the argument nearest to the point of carrying conviction, but what is forgotten is that the resolution is not the law, because it was not notified under paragraph 4 (5) of the Regulation, and that the Land Commission was entitled without any formality to vary it or disregard it by taking a different decision. The Commission has neither amended the resolution nor cancelled it but in exercise of its powers, has instructed the Chief Land Commissioner as a matter of policy or for implementing the law, to decide this case in accordance with some "previous decision of the Commission" which, in the language of the Commission "was clear and comprehensive". As emphasis has been laid on the resolution, I may remark that its language does not help the co-parceners. Mr. Pirzada took the stand that emphasis should not be placed on its language, but that force of law should be given to it. Here again there was a subtle inconsistency in his stand because the language of law defines its scope. The resolution is not law as explained above, but counsel's complaint that we laid emphasis on its language was unjustified on a more solid ground also, namely, that the word "for" ordinarily conveys the idea of an agency constituted for the principal, and does not represent the concept of a Karta or manager of a joint Hindu family. A Karta of joint Hindu family is not an agent of the family. He is not even a trustee of the family. The word "for" is therefore unsuitable as a substitute for the word "Karta" and "manager",

not only literally but because the concepts differ. Additionally, the copies of the revenue papers produced by counsel, in which the word "for" has been used, were apparently not brought to the notice of the Chief Land Commissioner and other officers, because there is no mention of them in any of the orders that have been brought to our notice. Mr. Pirzada asserted that copies of these entries were submitted to the Chief Land Commissioner, but Mr. Khalid Ishaq, the Additional Advocate-General produced the original record to contradict this allegation, and Mr.

Pirzada did not attempt to challenge him by checking the record. It is difficult to believe that the documents have been removed from the record if they were filed, or have been passed over without noticing them if they were brought to the notice of the Chief Land Commissioner or other officers. On the contrary, if they were not filed before them in spite of the resources which were at the command of this rich family and the wealth of legal talent on which it has drawn, and have been filed in these proceedings, then one can only guess the mechanics behind it. The facts, circumstances and the relevant law leave no doubt in my mind that the co-parceners cannot be said to have defined shares in the joint family property, and that the allegation is not correct that entries of revenue records, to which reference has been made, were brought to the notice of the Chief Land Commissioner or other officers below him whose decisions have been produced in these proceedings. Even if the copies of the entries produced before us were taken into consideration, they would be unhelpful to the petitioner because they relate to the tiny area of a few hundred acres out of an area of about 18,000 acres which is in dispute.

7. In short, the claims and contentions of the co-parceners are not supported by the principles of Hindu law, nor by the provisions of the Regulation or the rules or orders made thereunder, nor specifically by the notification and resolution on which reliance has been placed, nor fully even by the facts brought on record. Against this background, I should note that a good part of their argument was seriously in conflict with paragraph 3 of the Regulation, because it makes the provisions of the Regulation, and any rule or order made thereunder, to override any other law or decree or order of Court or other authority, or any custom or usage, or instrument, deed or other document. In other words, no order can be made by a Court of law except in exclusive recognition of the Regulation and rules and orders made thereunder. Further it is to be remembered that whatever field is left open for Court's action by this paragraph is narrowed by the exclusion of Court's jurisdiction in terms of paragraph 27 of the Regulation. Sub-paragraph (1) of paragraph 27 excludes the jurisdiction of "any Court, including the High Court and the Supreme Court" to question the provisions of the Regulation, or any rules or orders made thereunder, and prevents the Courts further from exercising any jurisdiction "in respect of any matter which the Commission or an officer acting under the authority of the Commission is empowered to determine". In terms of this provision, an occasion could arise for interference by a Civil Court only in the eventuality of a finding that the Commission or an officer acting under the Commission's authority has determined a matter which the Commission or the officer authorised by it was not empowered to determine. Sub-paragraph (2) of paragraph 27 debars all Courts, including the High Court and the Supreme Court, from granting any injunction or other order in relation to any proceeding held before the Commission and before any officer acting under the Regulation or the rules or orders made thereunder. By this sub-paragraph all Courts, including the High Court and the Supreme Court have been debarred from granting an injunction or other order in relation to

anything done or intended to be done by or at the instance of the Commission or by or at the instance of an officer acting under the Regulation or the rules or orders made thereunder. It is noteworthy that the condition of conformity to the Regulation or the rules or orders made thereunder is not stated in paragraph 27 (2) in relation to a proceeding held before the Commission or anything done or intended to be done by or at the instance of the Commission. This freedom is given to the Commission in relation to injunctions and, I believe, other similar orders only. In terms of this provision an occasion in which an injunction or other order in relation to a proceeding held before an officer, or in relation to anything done or intended to be done by or at the instance of an officer, could arise only if the impugned proceeding was found to be outside the Regulation or the rules or orders made thereunder. Learned counsel have wrestled with paragraphs 3 and 27 of the Regulation and spent ingenuity to find loopholes in them when read by themselves or with Article 2 of the President's Order (Post-Proclamation) No. 1 of 1958, so that a wider jurisdiction could be assigned to the High Court or the Supreme Court than that recognised by the Supreme Court in *Zafar-ul-Ahsan v. Republic of Pakistan* but the language of these provisions themselves tied them in knots which could at no time be loosened during the lengthy arguments. The Supreme Court has conversely stated the circumstances in which Civil Courts may assume jurisdiction when it is expressly barred. Similar principles are stated in paragraph 260 of *Halsbury's Laws of England*, Vol. XI (III Ed.) and at pages 227-28 and 230-31 of the "Judicial Review of Administrative Action" by S.

A. de Smith, but they are not applicable to this case because there is no allegation that the authorities who have decided the claims of the petitioner or other members of the* co-parcenary were not properly constituted, or that the Regulation or the rules or orders made thereunder have been used as a cloak to cover acts done in bad faith ; nor can, one argue reasonably that the petitioner or the co-parceners were not subject to the jurisdiction of those authorities ; nor that the authorities have acted on grounds which are outside the Regulation, or rules or orders made thereunder; nor even that the impugned order could not be made under them.

8. The members of this family have a right to feel they have lost more land than was avoidable by them. Their counsel has informed us that a suit has been recently filed for a declaration that the property had been partitioned or for partitioning it. It is still pending. The co-parceners could have partitioned the property when the Evacuee Laws were, applied to them, but they did not do so at that time and obtained declarations in the proceedings taken under those laws that they were joint. I think that it was in their interest at that time to remain joint, but Mr. Pirzada has contended that it was not so. Counsel's protests lead me to conclude that the members of the family were not certain at that time whether to remain a joint family or not. They have accordingly tried to sit on the fence. If they had definitely desired to remain to be a joint family, there was ample time at their disposal to get the name of the Karta' entered in the revenue records as such and to get the entries corrected, if correct entries had not been made owing to the carelessness of the Revenue Department. They are now attempting to take advantage of the uncertain or middle course that was adopted by them by allowing the names of two members of the family entered in the revenue papers as owners "for" the family. In these circumstances, if they have lost more than was inevitable, it is their own fault for which a writ petition is not the remedy.

9. I fully agree with all essential conclusions of my brother Wahid-ud-din Ahmed, J.

[Qadeeruddin, J being ill, his Lordship's order was announced by Wahid-ud-din Ahmad and Khamisani, JJ.]

A. H. Petition dismissed.

easylaw Case No.
1192096

Download Case (data:text/html;charset=UTF-8,%0A%20%20%20%20%3Cbr%3E%0A%20%20%20%20%3Ctable%20class%3D%22table%20table-striped%22